

FLOOR AMENDMENT
HOUSE OF REPRESENTATIVES
State of Oklahoma

SPEAKER:

CHAIR:

I move to amend HB3321 _____
Of the printed Bill
Page _____ Section _____ Lines _____
Of the Engrossed Bill

By deleting the content of the entire measure, and by inserting in lieu thereof the following language:

AMEND TITLE TO CONFORM TO AMENDMENTS

Adopted: _____ Amendment submitted by: Mike Osburn _____

Reading Clerk

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

FLOOR SUBSTITUTE

FOR

HOUSE BILL NO. 3321

By: Osburn

FLOOR SUBSTITUTE

An Act relating to criminal procedure; amending 22 O.S. 2021, Section 983, as last amended by Section 2, Chapter 211, O.S.L. 2024 (22 O.S. Supp. 2025, Section 983), which relates to financial obligations in criminal cases; authorizing civil enforcement actions for noncompliance of payment plans; updating summons form to advise defendants of possible civil enforcement actions; providing for the assessment of administrative fees; establishing restrictions and notice procedures when garnishing earnings; prohibiting the furnishing, communicating, or transmission of certain information to credit reporting agencies; deeming civil judgments as non-consumer-related public records; authorizing civil enforcement actions for delinquent court financial obligations; allowing for garnishments and other civil enforcement actions; removing procedures related to persons arrested pursuant to cost arrest warrants; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 22 O.S. 2021, Section 983, as last amended by Section 2, Chapter 211, O.S.L. 2024 (22 O.S. Supp. 2025, Section 983), is amended to read as follows:

1 Section 983. A. As used in this section, unless the context
2 otherwise requires:

3 1. "Cost arrest warrant" means a warrant authorizing arrest
4 that is issued by a court under the following circumstances:

- 5 a. failure to comply with the terms of a court financial
6 obligations payment plan,
- 7 b. failure to appear at a cost hearing or willfulness
8 hearing, or
- 9 c. failure to appear at the office of the court clerk of
10 the county in which the court financial obligation is
11 owed within ten (10) days of being cited by a law
12 enforcement officer to appear;

13 2. "Cost cite and release warrant" means a warrant issued by a
14 court authorizing citation and release under the following
15 circumstances:

- 16 a. failure to comply with terms of a court financial
17 obligations payment plan, or
- 18 b. failure to appear at a cost hearing or willfulness
19 hearing;

20 3. "Cost hearing" means a hearing in which the court determines
21 the ability of a defendant to pay court financial obligations. Once
22 a cost hearing date has been set, all court financial obligations
23 shall be suspended until the cost hearing has been held;

1 4. "Court financial obligation" means all financial
2 obligations, including fines, costs, fees, and assessments, imposed
3 by the court or required by law to be paid, excluding restitution or
4 payments to be made other than to the court clerk;

5 5. "Payment-in-full" means a court financial payment term that
6 requires the defendant to pay the full amount of court financial
7 obligations owed within ninety (90) days of a plea or sentence in
8 the district court or within thirty (30) days of a plea or sentence
9 in the municipal court;

10 6. "Payment-in-installments" means payment terms for court
11 financial obligations that require the defendant to make monthly
12 payments in any amount until the amount owed is fully paid; and

13 7. "Willfulness hearing" means a hearing in which the court
14 determines whether a defendant who has previously been found to have
15 the ability to pay court financial obligations has willfully failed
16 to pay the debt.

17 B. 1. Except in cases provided for in Section 983b of this
18 title, when the judgment and sentence of a court, either in whole or
19 in part, imposes court financial obligations upon a defendant, the
20 court at the time of sentencing may immediately, or at any point
21 thereafter until the debt is either paid or waived, determine the
22 ability of a defendant to pay the court financial obligations. The
23 court may make such determinations at a cost hearing or upon written
24

1 motion or affidavit by the defendant. The ability of a defendant to
2 pay court financial obligations may not impact the sentence imposed.

3 2. Defendants with court financial obligations who are found by
4 the court to be unable to pay, in whole or in part, shall be
5 relieved of the debt by the court through a hardship waiver of the
6 court financial obligations, either in whole or in part.

7 3. In determining the ability of a defendant to pay, the court
8 shall consider the following factors:

- 9 a. individual and household income,
- 10 b. household living expenses,
- 11 c. number of dependents,
- 12 d. assets,
- 13 e. child support obligations,
- 14 f. physical or mental health conditions that diminish the
15 ability to generate income or manage resources,
- 16 g. additional case-related expenses to be paid by the
17 defendant, and
- 18 h. any other factors relevant to the ability of the
19 defendant to pay.

20 4. In determining the ability of a defendant to pay, the
21 following shall not be considered as income or assets:

- 22 a. child support income,

1 b. any monies received from a federal, state, or tribal
2 government need-based or disability assistance
3 program, or

4 c. assets exempt from bankruptcy.

5 5. Defendants in the following circumstances are presumed
6 unable to pay and eligible for relief under paragraph 2 of this
7 subsection:

8 a. designated as totally disabled by any federal, state,
9 or tribal disability services program including but
10 not limited to military disability, Social Security
11 Disability Insurance, Supplemental Security Income, or
12 tribal disability benefits,

13 b. receives support from the Temporary Assistance for
14 Needy Families program, Supplemental Nutrition
15 Assistance Program, the Special Supplemental Nutrition
16 Program for Women, Infants, and Children nutrition
17 education and supplemental food program, or any other
18 federal need-based financial support,

19 c. receives subsidized housing support through the
20 Housing Choice Voucher program, the United States
21 Department of Housing and Urban Development, or other
22 state, local, or federal government housing subsidy
23 program, or
24

1 d. total income is below one hundred fifty percent (150%)
2 of the federal poverty level.

3 C. 1. At the time of a plea or sentencing, the court shall
4 inform the defendant of the total court financial obligations owed,
5 the consequences of failing to pay the court financial obligations,
6 and that the defendant may request a cost hearing if at any time he
7 or she is unable to pay the court financial obligations, at which
8 point the court may waive all or part of the debt owed. If the
9 total amount of court financial obligations owed is not available at
10 the time of the plea or sentencing, the court shall inform the
11 defendant that court financial obligations have been incurred and
12 the time and location where the defendant may learn of the total
13 amount owed.

14 2. The court shall order the defendant to appear immediately
15 after sentencing at the office of the court clerk to provide current
16 contact information and to either select payment terms or request a
17 cost hearing. Failure to immediately report to the court clerk
18 shall result in the full amount of court financial obligations to be
19 due thirty (30) days from the date of the plea or sentencing in
20 district courts or thirty (30) days from the date of the plea or
21 sentencing in municipal courts.

22 3. Payment of court financial obligations may be made under the
23 following terms:

24 a. payment in full, or

1 b. payment in installments.

2 Upon any change in circumstances affecting the ability of a
3 defendant to pay, a defendant may request a cost hearing before the
4 court by contacting the court clerk.

5 4. The district court for each county and all municipal courts
6 shall provide a cost hearing for any defendant upon request, either
7 by establishing a dedicated docket or on an as-requested basis. A
8 defendant who requests a cost hearing will receive a summons by
9 personal service or by United States mail to appear in court as
10 required by subsection G of this section. If a defendant fails to
11 appear for a requested cost hearing, the court may issue ~~either~~ a
12 cost cite and release warrant ~~or a cost arrest warrant~~. No fees
13 shall be assessed or collected from the defendant as a consequence
14 of ~~either~~ requesting a cost hearing or the issuing of a cost cite
15 and release warrant.

16 D. In determining the ability of the defendant to pay court
17 financial obligations, the court may rely on testimony, relevant
18 documents, and any information provided by the defendant using a
19 cost hearing affidavit promulgated by the Court of Criminal Appeals.
20 In addition, the court may make inquiry of the defendant and
21 consider any other evidence or testimony concerning the ability of
22 the defendant to pay.

23 E. 1. If at the initial cost hearing or any subsequent cost
24 hearing, the court determines that the defendant is able to pay some

1 or all of the court financial obligations, the court may order any
2 of the following conditions for payment:

- 3 a. payment in full,
- 4 b. payment in installments,
- 5 c. financial incentive under a set of conditions
6 determined by the court, or
- 7 d. community service in lieu of payment; provided, the
8 defendant shall receive credit for no less than two
9 times the amount of the minimum wage specified
10 pursuant to state law for each hour of community
11 service.

12 2. Any defendant who fails to comply with the terms of the
13 payment plan ordered by the court shall be considered delinquent and
14 the court may issue either a cost cite and release warrant or ~~a cost~~
15 ~~arrest warrant~~ the court clerk or prosecutor may pursue a civil
16 enforcement action as provided in subsection H of this section.

17 F. If the court determines that a waiver of any of the court
18 financial obligations is warranted, the court shall apply the same
19 percentage reduction equally to all fines, costs, fees, and
20 assessments, excluding restitution.

21 G. 1. A defendant is considered delinquent in the payment of
22 court financial obligations under the following circumstances:

- 23 a. when the total amount due has not been paid by the due
24 date, or

1 b. when no installment payments have been received in the
2 most recent ninety-day period.

3 2. The court clerk shall periodically review cases for
4 delinquency at least once every six (6) months and, upon identifying
5 a delinquent defendant, notify the court which shall, within ten
6 (10) days thereafter, set a cost hearing for the court to determine
7 if the defendant is able to pay. The cost hearing shall be set
8 within forty-five (45) days of the issuance of the summons. The
9 hearing shall be set on a date that shall allow the court clerk to
10 issue a summons fourteen (14) days prior to the cost hearing.
11 Defendants shall incur no additional fees associated with the
12 issuance of the summons.

13 3. At least fourteen (14) days prior to the cost hearing, the
14 court clerk shall issue one summons to the defendant to be served by
15 United States mail to the mailing address of the defendant on file
16 in the case, substantially as follows:

17 SUMMONS

18 You are ORDERED to appear for a COST HEARING at a specified
19 time, place, and date to determine if you are financially able to
20 pay the fines, costs, fees, or assessments or an installment due in
21 Case No._____.

22 YOU MUST BE PRESENT AT THE HEARING.

23 At any time before the date of the cost hearing, you may contact
24 the court clerk and pay the amount due or request in writing or in

1 person prior to the court date, that the hearing be rescheduled for
2 no later than thirty (30) days after the scheduled time.

3 THIS IS NOT AN ARREST WARRANT. However, if you fail to appear
4 for the cost hearing or pay the amount due, the court may: ~~issue~~

5 1. Issue a ~~WARRANT~~ cost cite and release warrant and may refer
6 the case to a court cost compliance liaison which will cause an
7 additional administrative fee of up to thirty-five percent (35%) to
8 be added to the amount owed and may include additional costs imposed
9 by the court; or

10 2. Refer the case to the prosecutor who may pursue a civil
11 enforcement action which shall cause an additional administrative
12 fee of up to thirty-five percent (35%) to be added to the amount
13 owed and may include additional costs imposed by the court.

14 4. Referrals to the court cost compliance program as provided
15 in subsection L of this section shall be made as follows:

16 a. ~~courts shall refer a case to the court cost compliance~~
17 ~~program upon the issuance of a cost arrest warrant,~~

18 ~~b.~~ courts may refer a case to the court cost compliance
19 program upon the issuance of a cost cite and release
20 warrant, or

21 ~~c.~~

22 b. courts may refer a case to the court cost compliance
23 program without the issuance of a warrant; provided,

1 the defendant is delinquent and has had sufficient
2 notice and opportunity to have a cost hearing.

3 5. A municipal court, in lieu of mailing the summons provided
4 for in this subsection, may give the summons to the defendant in
5 person at the time of sentencing or subsequent appearance of a
6 specific date, time, and place, not fewer than thirty (30) days nor
7 more than one hundred twenty (120) days from the date of sentencing
8 to appear for a cost hearing if the court financial obligations
9 remain unpaid.

10 H. 1. If a defendant is found by a law enforcement officer to
11 have an outstanding cost cite and release warrant, the law
12 enforcement officer shall issue a Warning/Notice to appear within
13 ten (10) days of release from detention on the warrant to the court
14 clerk of the court in which the court financial obligations are
15 owed. If the officer has the necessary equipment, the officer shall
16 immediately transmit the Warning/Notice electronically to the court
17 clerk of the court in which the court financial obligations are
18 owed. The law enforcement officer shall not take the defendant into
19 custody on the cite and release warrant. If the law enforcement
20 officer is unable to transmit the Warning/Notice electronically to
21 the court clerk, the officer shall inform the appropriate department
22 staff member within the agency of the law enforcement officer of the
23 Warning/Notice within five (5) days. The department staff member
24 shall then promptly notify the law enforcement agency in the

jurisdiction that issued the warrant electronically, who shall promptly notify the court clerk. The electronic communication shall be treated as a duplicate original for all purposes in any subsequent hearings before the appropriate court.

2. If the defendant reports to the office of the court clerk within the ten (10) days, the court clerk shall:

- a. inform the court of the Warning/Notice to the defendant and contact,
- b. schedule a cost hearing pursuant to applicable local court rule, and
- c. submit the warrant to the court for recall pending the cost hearing.

3. If the defendant fails to report to the office of the court clerk within the ten (10) days, the ~~court~~ prosecutor may ~~issue a cost arrest warrant for the arrest of the defendant~~ initiate a civil enforcement action to collect delinquent court financial obligations. A civil enforcement action may include, but is not limited to:

- a. garnishment, as governed by Sections 1171 through 1196 of Title 12 of the Oklahoma Statutes, or
- b. other civil enforcement actions allowed by law.

4. ~~Following an arrest on a cost arrest warrant, the defendant must be released after seventy-two (72) hours in custody. The defendant may be released prior to seventy-two (72) hours if:~~

- 1 a. ~~the custodian is presented with proof of payment in~~
2 ~~the amount of One Hundred Dollars (\$100.00) to each~~
3 ~~jurisdiction where the court financial obligations are~~
4 ~~owed and the new cost hearing date is provided,~~
5 b. ~~the court releases the defendant on the defendant's~~
6 ~~own recognizance and a new cost hearing date is~~
7 ~~provided, or~~
8 c. ~~the court conducts a cost or willfulness hearing, as~~
9 ~~appropriate, pursuant to the provisions of this~~
10 ~~section and determines the defendant should be~~
11 ~~released.~~

12 If the prosecutor seeks a continuing garnishment on earnings
13 pursuant to Section 1173.4 of Title 12 of the Oklahoma Statutes, the
14 maximum amount that may be garnished from the earnings of the
15 defendant is Fifty Dollars (\$50.00) per month. The garnishment may
16 be further reduced by the limitations provided for in Section 1673
17 of Title 15 of the United States Code.

- 18 a. In any garnishment issued pursuant to this paragraph,
19 in lieu of the notice of garnishment and exemptions
20 required by Section 1174 of Title 12 of the Oklahoma
21 Statutes, the prosecutor shall attach a notice in a
22 form prescribed by the Court of Criminal Appeals
23 notifying the defendant of the right to request a cost
24 hearing.

1 b. If a defendant is subject to garnishment under the
2 provisions of this paragraph and the employee has no
3 more than one additional garnishment for indebtedness
4 pursuant to Section 1674 of Title 15 of the United
5 States Code, an employer may not discharge the
6 defendant by reason of the fact that his or her
7 earnings have been subject to said garnishments.

8 c. A continuing garnishment on earnings shall not be
9 subject to the expiration period provided by Section
10 1173.4 of Title 12 of the Oklahoma Statutes.

11 5. The court or any state or local governmental entity acting
12 to collect a court financial obligation under the provisions of this
13 section shall be prohibited from furnishing, communicating, or
14 transmitting any information regarding the existence or delinquency
15 of such obligation or the resulting civil judgment, to any consumer
16 credit reporting agency or similar entity that furnishes a credit
17 report or credit rating on a consumer.

18 6. A civil judgment entered for a court financial obligation
19 under the provisions of this section, and any subsequent collection
20 activity, shall be deemed a non-consumer-related public record for
21 the purposes of credit reporting and may not be reported or included
22 in any consumer credit report.

23 ~~5.~~ 7. The provisions for issuing a separate summons described
24 in subsection G of this section shall not apply to a municipal court

1 if the municipal court has previously provided actual personal
2 notice to the defendant of an opportunity for a cost hearing. If
3 such notice was given and the defendant fails to appear, the
4 municipal court may issue ~~either~~ a cost cite and release warrant ~~or~~
5 ~~a cost arrest warrant~~.

6 ~~6.~~ 8. All warrants for failure to appear at a cost hearing or
7 for failure to pay court financial obligations which have been
8 issued prior to the effective date of this act and which remain
9 unserved~~7~~ shall be treated as cost cite and release warrants. All
10 warrant fees assessed for warrants for failure to appear at a cost
11 hearing or for failure to pay court financial obligations issued
12 prior to the effective date of this act shall remain in effect
13 unless waived by the court.

14 I. Supporting documents in a motion or affidavit for relief
15 from court financial obligation debt or any documents taken into
16 evidence during a cost hearing or willfulness hearing shall not be
17 viewable by the public on a court-controlled website.

18 J. 1. After a cost hearing where a defendant is found able to
19 pay a court financial obligation, either in whole or in part, and
20 then becomes delinquent in that payment, a court may conduct a
21 willfulness hearing at any time beginning immediately after a cost
22 hearing has been held and a decision rendered on the court financial
23 obligations. Findings of a defendant's prior ability to pay may be
24 considered as evidence of ability to pay or willfulness at the

1 hearing. The requirements of this paragraph shall not be construed
2 to prohibit the court from holding subsequent cost hearings on the
3 same court financial obligations.

4 2. At a willfulness hearing, the court shall evaluate the
5 following:

- 6 a. whether a cost hearing has been held previously where
7 evidence relating to ability to pay was presented and
8 the court found the defendant was able to pay the
9 court financial obligations, either in whole or in
10 part,
- 11 b. whether there is any new evidence of ability to pay
12 not previously considered or a change in circumstances
13 since the cost hearing,
- 14 c. whether the defendant was afforded sufficient time and
15 opportunity to fulfill the obligation to pay the court
16 financial obligations,
- 17 d. whether the defendant made any efforts to satisfy the
18 court financial obligations, and
- 19 e. whether there are any other relevant facts or
20 circumstances.

21 3. After a finding of willful failure to pay court financial
22 obligations, the court may impose a jail sentence pursuant to
23 Section 101 of Title 28 of the Oklahoma Statutes. A jail sentence
24 may be imposed only under the following circumstances:

1 a. the hearing is conducted on the record pursuant to the
2 rules promulgated by the Court of Criminal Appeals,
3 and

4 b. the defendant is represented by counsel or expressly
5 waives his or her right to counsel.

6 4. If a jail sentence is imposed, the court may grant credit
7 for any time already served. At any time after incarceration, the
8 jail sentence may be satisfied upon payment in full of the
9 outstanding balance with credit for any time already served.

10 K. The district court or municipal court, within one hundred
11 twenty (120) days from the date upon which the person fails to
12 comply with the financial obligation as ordered by the court or
13 fails to appear for the offered cost or willfulness hearing, may, if
14 the defendant has previously been notified of the possibility of a
15 suspension, send notice of nonpayment of any court-ordered financial
16 obligation for a moving traffic violation to Service Oklahoma with a
17 recommendation of suspension of driving privileges of the defendant
18 until the total amount of any court financial obligation has been
19 paid or waived by the court. Upon receipt of payment of the total
20 amount of the court financial obligations for the moving traffic
21 violation, the court shall send notice thereof to Service Oklahoma,
22 if a nonpayment notice was sent as provided for in this subsection.
23 Notices sent to Service Oklahoma shall be on forms or by a method
24 approved by Service Oklahoma.

1 L. Every county and district court of this state shall either
2 fully utilize and participate in the court cost compliance program
3 or participate in the civil garnishment program. Cases shall be
4 referred to the court cost compliance program or civil garnishment
5 program no more than sixty (60) days after the court has ordered the
6 referral pursuant to paragraph 4 of subsection G or subsection H of
7 this section, unless the defendant pays the amount owed on the court
8 financial obligation or an installment due. When the court refers a
9 case, the updated contact information on file shall be forwarded to
10 a court cost compliance liaison for collection purposes.

11 M. The Court of Criminal Appeals shall implement procedures and
12 rules for implementation of the requirements of this section. Such
13 procedures, rules, and any supplemental forms may be made available
14 by the Administrative Office of the Courts.

15 SECTION 2. This act shall become effective November 1, 2026.

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17 60-2-17131 GRS 03/11/26

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